

Breach of Contract. The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

The operative pleading does not allege the existence of a contract between Plaintiff and SIDLINGER. It alleges Plaintiff rented an apartment, but does not detail from whom, or on what terms. The operative pleading therefore does not allege in what way SINDLINGER breached a contract between the parties and thereby caused Plaintiff harm.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) Plaintiff has not filed opposition and so has not demonstrated how identified defects might be cured by amendment.

Conclusion. SINDLINGER's unopposed demurrer is sustained without leave to amend.

WALKER v. DOE, ET AL.
Case No. CU26-06540

Motion for Preliminary Injunction

TENTATIVE RULING

Plaintiff's motion for a preliminary injunction is denied.

"No preliminary injunction shall be granted without notice to the opposing party." (Code Civ. Proc. § 527(a).) Notice had to be given by serving a noticed motion pursuant to Code of Civil Procedure section 1005. (Cal. Rules of Court, rule 3.1150(a); *JHVS Group, LLC v. Slate* (2024) 107 Cal.App.5th 30, 37.) The noticed motion had to be served on defendants at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005(b).)

Plaintiff failed to serve any defendant with the motion papers. Proof of service of the motion papers had to be filed no later than five court days prior to the hearing. (Cal. Rules of Court, rule 3.1300(c).)

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca.gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002